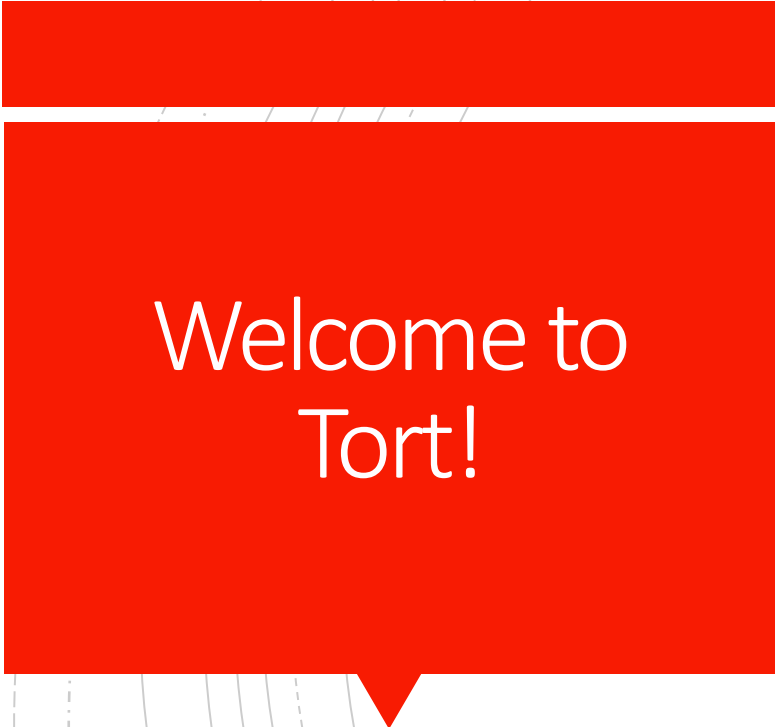




Tort

Section B
Fall 2026

Professor Suzanne Chiodo

A large red speech bubble graphic with a white outline, pointing downwards. It contains the text "Welcome to Tort!" in white. Above the main bubble is a smaller, solid red rectangular bar.

Welcome to
Tort!

- Let's start with an icebreaker:
 - <https://www.menti.com/allp3jlhebhw>
 - Access code: 2972 3978
- Contact details:
 - Me: schiodo@osgoode.yorku.ca
 - Faculty Assistant, Mary Barbieri:
mbarbieri@osgoode.yorku.ca
 - Dean's Fellows:
sebastiancasanova2025@osgoode.yorku.ca
jeremiahboateng2025@osgoode.yorku.ca

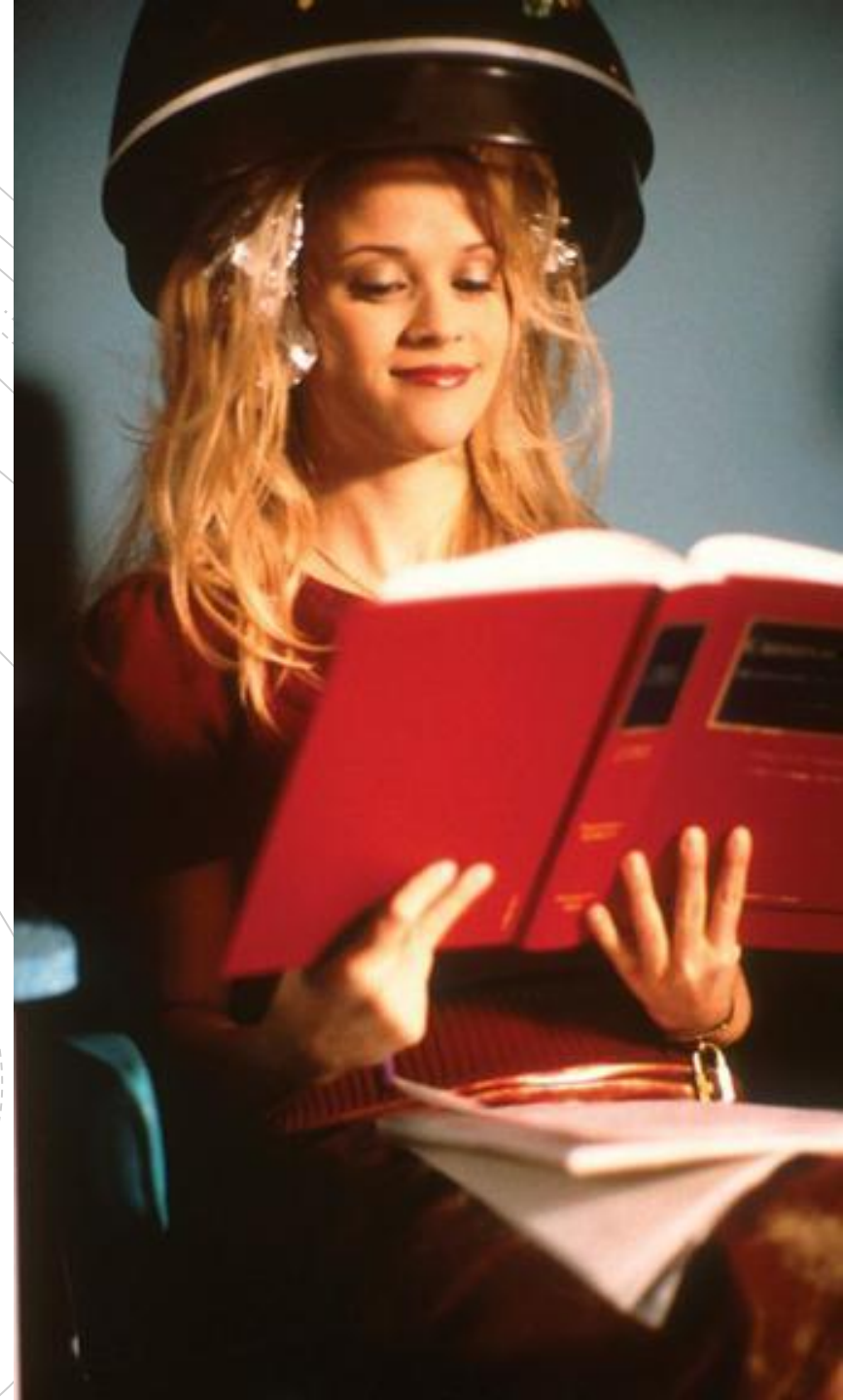
More useful
stuff

- **Dates:**
 - **Regular classes:**
 - Tuesday 9:30-12:20pm (1005/1006) (whole section)
 - Thursday 1:00-2:00pm (2009) (Group 1)
 - Thursday 2:00-3:00pm (2009) (Group 2)
 - Thursday 3:00-4:00pm (2009) (Group 3)
 - Reading Week is November 2-6
 - Practice midterm: October 13, during regular class time
 - Final exam: December 10 (time tbd)
- **Office hours – by appointment (email me)**
- **Assessment**
 - Practice midterm
 - Final exam (90%)
 - Participation (10%)

Course materials

Christopher Essert, Jason W Neyers, and Ernest J Weinrib (eds), *Tort Law: Cases and Materials*, 6th ed (Toronto: Emond, 2025)

Other materials on eClass – check regularly



Dean's Fellows

- Sebastian: sebastiancasanova2025@osgoode.yorku.ca
- Jeremiah: jeremiahboateng2025@osgoode.yorku.ca
- They are here to help you with study strategies, summaries, and midterm/exam preparation



Tips & Expectations

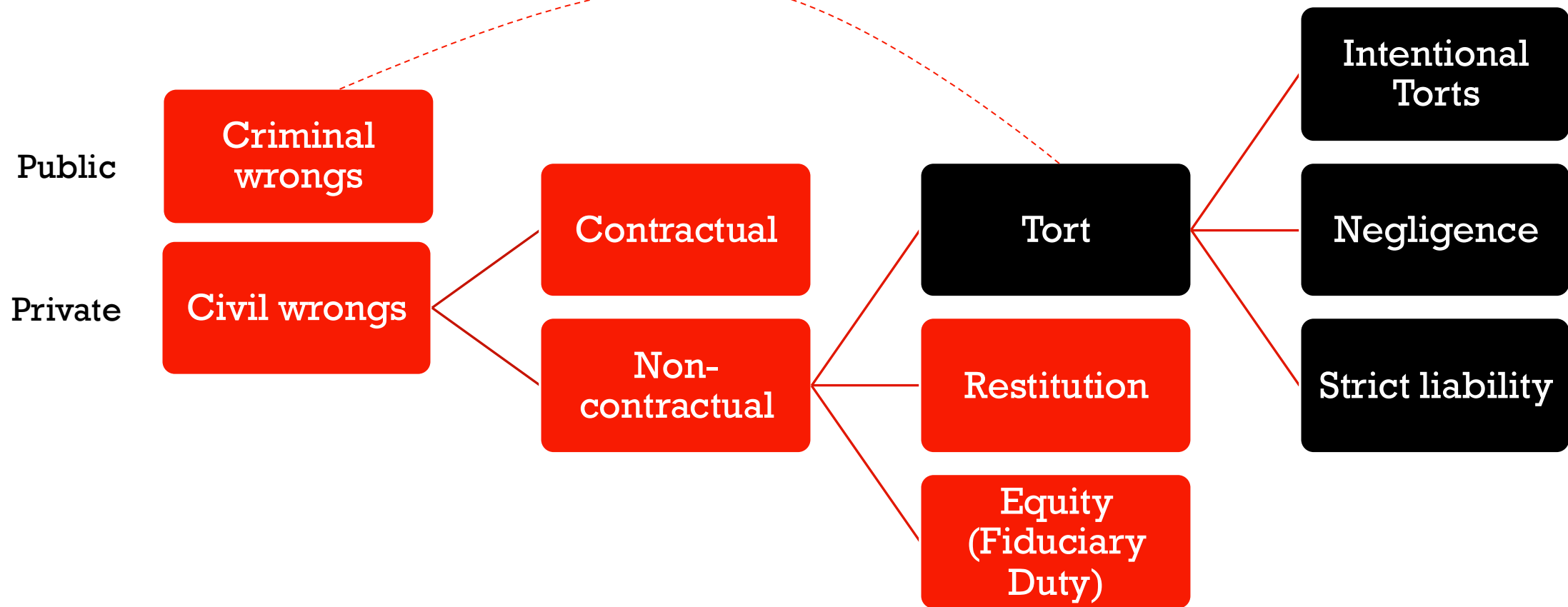
- How to study tort law
- Course objectives
 - Learn about tort law
 - Understand how common law reasoning works
 - Learn about competing understandings of the law of torts
- Classroom etiquette
- What I expect
- Dealing with stress and burnout

Introduction to Tort Law

- What is a tort?
 - <https://www.menti.com/alh66jud132i>
 - Access code: 4947 1608
- What are some examples of a tort?

Introduction to Tort Law (continued)

- 'Tort', from Latin *tortum* (wrong, injustice)
- But tort doesn't cover all wrongs – what is its place in the law generally?



Criminal Law	Tort Law
Focus – punishment and deterrence (offender and their conduct)	Focus – compensation (damage to the plaintiff)
Public matter initiated by the state	Initiated by plaintiff in private proceedings
Burden of proof – beyond a reasonable doubt	Burden of proof – on a balance of probabilities (more likely than not)
Result – finding of guilt and a sentence of punishment	Result – finding of liability and an order to pay damages

Intentional Torts	Negligence	Strict Liability
Assault	Carelessness that causes other people injury. Consists of: Duty of Care Standard of Care Causation Remoteness Damage Defences Damages	Tort in <i>Rylands v Fletcher</i>
Battery		Vicarious liability
False imprisonment		
Intentional infliction of emotional distress		
Trespass		
Conversion		
Defamation		

Introduction to Tort Law (continued)

- What role does policy play in tort law?
- The word 'policy' is used in a few ways throughout this course
- Our main use of the word 'policy' = 'line-drawing' to limit recovery
- Considers the impact of the case beyond the litigants, and the precedential value of the decision
- Considers the role and purposes of tort law



How do tort cases work in court?

- Plaintiff considers who might be at fault / who can pay compensation
- Commences action in Superior Court
- Plaintiff must establish all elements of tort on balance of probabilities
- Defendant can raise defences
- If defences do not succeed, defendant is found liable
- Court determines damages payable

Purposes of Tort Law

- What are some of the purposes of tort law?
 - <https://www.menti.com/alrxyys8juco>
 - Access code: 8923 1874
- To protect certain rights
- To identify violations of those rights
- To provide redress when those rights are violated

Compensation

Punishment

Deterrence (specific,
general, market)

Denunciation

Appeasement &
retribution

Education

Ombudsperson role

An aerial photograph of a large-scale mining operation in an arid, desert environment. The central feature is a massive open-pit mine with distinct terraced levels, showing the progression of excavation. To the right of the mine is a complex industrial facility, likely a processing plant, with various buildings, storage tanks, and infrastructure. Several large, circular or semi-circular tailing ponds are visible, containing dark, slurry-like material. The surrounding landscape is dry and hilly, with some sparse vegetation. A body of water is visible in the upper left corner. The overall scene depicts the significant industrial and environmental impact of large-scale resource extraction.

Tort's role in social change

Tort and other Compensatory Vehicles

- This recognizes the limitations of tort law
- Alternatives include government no-fault schemes, eg:
 - Worker's compensation
 - Statutory accident benefits
 - Criminal injury compensation schemes
 - Compensation schemes for specific harms
 - No-fault accident schemes such as NZ's Accident Compensation Corporation
- Alternatives can also include private insurance (life, disability)

Theoretical Perspectives

Moralist

- Responsibility to others, correction of individual injustices
- Policy issues seen as irrelevant
- Corrective justice – potential problems
- Civil Recourse Theory



Theoretical Perspectives

Instrumentalist

- Tort law exists as a tool to address certain social problems
- For example, risk-spreading and the allocation of costs
- Downsides (Ford Pinto case)



Theoretical Perspectives

Critical Theory

- Tort law (like all law) is not neutral, and is in fact inherently oppressive
- Discussions on tort law must recognize the reality of racism
- Law can also be used in the battle against racism



Theoretical Perspectives (continued)

- Some scholars reject 'grand theories' of the law and just look at what the cases say
 - What is the problem with this approach?
- Which of these perspectives do you feel is most persuasive?
 - <https://www.menti.com/al5e96aerc8x>
 - Access code: 2273 4316

The background features a series of concentric circles in light gray, some solid and some dashed, creating a ripple effect. A large, solid red speech bubble is centered on the page, pointing downwards. The text is white and centered within the bubble.

Next class (small groups):
Application of Theoretical
Perspectives